BEFORE THE NATIONAL COMPANY LAW TRIBUNAL,

ALLAHABAD BENCH

CA (CAA) No. 21/ALD of 2021

IN THE MATTER OF SECTION 230-232 OF THE COMPANIES ACT, 2013

(Under Section 230 & 232 of the Companies Act, 2013 read with other applicable provisions of the Companies Act, read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

In the matter of scheme of amalgamation

OF

KONARK IRRIGATION PRIVATE LIMITED

(TRANSFEROR COMPANY)

AND

KONARK POLYTUBES PRIVATE LIMITED

(TRANSFEREE COMPANY)

AND

Their Respective Shareholders and Creditors

ORDER PRONOUNCED ON :05.10.2021

CORAM:
Hon'ble Dr. Deepti Mukesh, Member, Judicial
Hon'ble Ms. Sumita Purkayastha, Member, Technical

MEMO OF PARTIES

—Sd—

KONARK IRRIGATION PRIVATE LIMITED
Registered Office at

Vill. Baroth, Chhajamal ,
Tehsil- Gabhana, Aligarh, U.P, 202001

.....Transferor Company

AND

KONARK POLYTUBES PRIVATE LIMITED
Registered Office at
Shyamanchal Pushpanjali Colony,
Ramghat Road, Aligarh, U.P 202001.

.....Transferee Company

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Appearance:
Ramesh Chandra Sharma alongwith
Aishwarya Sharma, Adv and Anuj Kumar, Adv

ORDER

[Per se: Dr. Deepti Mukesh, Hon'ble Member (J)]

1. This is an application jointly filed by the applicant companies, Konark Irrigation Private Limited (hereinafter referred to as "Transferor Company") and Konark Polytubes Private Limited (herein after referred to as "Transferee Company"), under Section 230-32 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013, read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement by way of amalgamation (herein after referred to as the "Scheme") proposed between the applicants.

—Sd—

2. An Affidavit in support of the application has been sworn by Sh. Anmol Ratan and Smt. Kumud Varshney on behalf of both the applicant company, being authorized representatives of the applicant company is filed. The above named authorized representatives for both the applicant company have been authorized vide Board Resolution dated 30.06.2021 of the respective applicant companies. It is also represented that the registered office of both the applicant companies is under the domain of ROC Kanpur and within the territorial jurisdiction of the Tribunal.

3. It is submitted that the transferor company is a private limited company incorporated on 14.05.2015 under the provisions of companies act, 2013 having CIN U25203UP2015PTC070705 with Registrar of Companies, Kanpur in the name and style of "Konark Irrigation Private Limited". The registered office of the company is situated at vill. Baroth, Chhajamal , Tehsil- Gabhana, Aligarh, U.P, 202001. The authorized shared capital of the transferor company is Rs. 8,00,00,000/- divided into 80,00,000/- equity share of Rs.10 each. The issued, subscribed and paid up share capital of the company is Rs.6,91,50000/- divided into 69,15,000 equity shares of Rs. 10 each.

4. It is submitted that the transferee company is a private limited company incorporated on 16.01.1996 under the provisions of Companies Act, 1956 having CIN U25111UP1996PTC019348 with Registrar of Companies, Kanpur in the name and style of "Konark Polytubes Private Limited". The registered office of the company is situated at Shyamanchal Pushpanjali Colony, Ramghat Road, Aligarh,

—Sd—

U.P 202001. The Authorized share capital of the transferee company is Rs. 4,00,00,000/- divided into 4,00,000 equity shares of Rs. 100 each. The issued subscribed and paid up share capital of the company is Rs. 4,00,00,000/- divided into 4,00,000 equity shares of Rs. 100 each.

5. The Transferor as well as the Transferee Company has filed their respective Memoranda and Articles of Association inter alia delineating their object clauses, along with the audited balance sheets of both the companies for the year ending 31.03.2021 and the provisional balance sheets of both the companies for period ending 30.06.2021.

6. The Board of Directors of both the Applicant's company i.e Transferor and Transferee companies, has unanimously approved the proposed scheme of amalgamation as contemplated above. Copies of respective board resolutions dated 30.06.2021 passed in the respective board meeting have been placed on record.

7. Both the applicant companies, the transferor and the transferee company have annexed the certificate issued by the respective statutory auditors declaring the compliance of Section 133 of the Companies Act, 2013 for accounting standard by the respective counsels.

—Sd—

8. It is stated that the transferor company is having 46 Equity shareholders and all of them have given their respective consents by way of affidavits which are annexed to the application. It is further represented that the company has one secured creditor and 15

unsecured creditors and all of them have given their respective consents by way of affidavits which are also annexed to the application. Therefore in relation to the shareholders as well the secured and unsecured creditors, it seeks dispensing with holding/ convening the meetings as consents of all the equity share holders well as the secured and unsecured creditors has been placed on record.

9. With respect to the transferee company it is stated that the company is having 21 Equity Shareholders and all of them have given their respective consents by way of affidavits which are annexed to the application. It is further represented that the company has one secured and 56 unsecured creditors and all of them have given their respective consents by way of affidavits which are also annexed to the application. Therefore, in relation to the Equity Shareholders as well as the Secured and Unsecured Creditors, it seeks dispensing with the holding/convening of the meetings as the consent affidavit are placed on record.

10. The appointed date as specified in the scheme is 30.06.2021 subject to direction of this Tribunal.

11. Taking into consideration the submissions and the documents filed therewith, we propose to issue the following directions with respect to calling, convening and holding of the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors or dispensing with the same as well as issue of notices including by way of paper publication as follows:

—Sd—

A) **In relation to the transferor company:**

i. With respect to Equity shareholders:

In view of the consent affidavit from all equity share holders having 100% voting shares of the company, convening the meeting of the equity shareholders is dispensed with.

ii. With respect to secured creditors:

In view of the consent affidavit from the sole secured creditor having 100% voting shares of the company, convening the meeting of the secured creditor is dispensed with.

iii. With respect to unsecured creditors:

In view of the consent affidavit from all unsecured creditors having 100% voting shares of the company, convening the meeting of the unsecured creditors is dispensed with.

B) **In relation to transferee company.**

i. **With respect to Equity Shareholders.**

In view of the consent affidavit from all Equity Shareholders having 100% voting shares of the company, convening the meeting of the equity shareholders is dispensed with.

—Sd—

ii. **With respect to Secured Creditors.**

In view of the consent affidavit from sole Secured Creditor having 100% voting shares of the company, convening the meeting of the Secured Creditor is dispensed with.

iii. With respect to unsecured creditors.

In view of the consent affidavit from all Unsecured Creditors having 100% voting shares of the company, convening the meeting of the Unsecured Creditors is dispensed with.

The application stands allowed and disposed in terms of the aforesaid directions.

—Sd—

(SUMITA PURKAYASTHA)
MEMBER (T)

—Sd—

(DR. DEEPTI MUKESH)
MEMBER (J)

Swati Gupta
(LRA)